



Esthetician Studio Documentation Gap Assessment

Every item below maps to documentation, training, or templates included in the Compliance Ghost Kit.

How to use: check YES, NO, or N/A for each item. TDLR inspects salons and studios without notice, and inspectors begin with your records and postings. Every “NO” below is a documentation gap the \$997 Compliance Kit fills.

Penalty basis: TMB, TSBDE, TDLR, and DSHS may each assess up to \$5,000 per violation under Occ. Code §165.001, §264.002, §51.302 and Health & Safety Code §146.019, and each day a violation continues can be treated separately. OSHA serious violations reach \$16,550 and willful or repeated ones \$165,514. HIPAA civil penalties run \$145–\$73,011 per violation with a \$2,190,294 annual cap for repeat violations of the same provision. OSHA and HIPAA amounts are the 2026 figures and adjust for inflation each January. Amounts shown are maximums, not predictions.

TDLR LICENSING & POSTINGS

	YES	NO	N/A
Is every practitioner’s esthetician (or master esthetician) license current and displayed at their station? Rule & penalty: up to \$5,000 per violation, each day separate (TDLR) (Occupations Code Chapters 1602 and 1603; 16 TAC Chapter 83) KIT INCLUDES: License & Renewal Tracker	☐	☐	☐
Is the establishment license itself — standard, specialty, or mini — current and displayed? Rule & penalty: up to \$5,000 per violation, each day separate (TDLR) — operating without a current establishment license is a separate violation KIT INCLUDES: License & Renewal Tracker + renewal calendar	☐	☐	☐
If you rent booths, do you maintain a current renter list with names and license numbers, producible to TDLR on request? Rule & penalty: 16 TAC §83.71 · up to \$5,000 per violation, each day separate (TDLR) KIT INCLUDES: Booth Renter Log	☐	☐	☐
Are the Chapter 83 health and safety rules and the human trafficking awareness sign posted where clients can see them? Rule & penalty: Occupations Code §1603.357; 16 TAC Chapter 83 — up to \$5,000 per violation, each day separate (TDLR) KIT INCLUDES: Required Postings Pack (print-ready)	☐	☐	☐
Is every licensee current on TDLR continuing education for the 2-year cycle, with certificates retained? Rule & penalty: up to \$5,000 per violation, each day separate (TDLR) — CE shortfalls surface at renewal and on inspection KIT INCLUDES: CE Tracker + certificate file	☐	☐	☐

SANITATION & DISINFECTION



	YES	NO	N/A
Do you use only EPA-registered bactericidal, fungicidal, and virucidal disinfectants, used strictly per the product label? Rule & penalty: 16 TAC §§83.100–83.101 · up to \$5,000 per violation, each day separate (TDLR) KIT INCLUDES: Disinfection SOP + product selection guide	☐	☐	☐
Are immersion solutions, including bleach, mixed fresh daily and logged? Rule & penalty: 16 TAC §§83.100–83.101 · up to \$5,000 per violation, each day separate (TDLR) KIT INCLUDES: Daily Solution Log	☐	☐	☐
Are multi-use implements cleaned and then disinfected before every client, with single-use items discarded and clean items stored correctly? Rule & penalty: 16 TAC §§83.101–83.102 · up to \$5,000 per violation, each day separate (TDLR) KIT INCLUDES: Sanitation Checklist + storage guide	☐	☐	☐
Are foot spa cleaning and disinfection records kept on the TDLR-approved form and retained for 60 days? Rule & penalty: 16 TAC §83.108 · up to \$5,000 per violation, each day separate (TDLR) KIT INCLUDES: Foot Spa Cleaning Log in the TDLR format	☐	☐	☐
For waxing: single-use applicators only, no double-dipping, and wax pots cleaned per the manufacturer's instructions? Rule & penalty: 16 TAC §83.105 · up to \$5,000 per violation, each day separate (TDLR) KIT INCLUDES: Waxing Service SOP	☐	☐	☐
Do you have a written blood and body-fluid response protocol, with the supplies on hand to match it? Rule & penalty: 16 TAC §83.111 · up to \$5,000 per violation, each day separate (TDLR) KIT INCLUDES: Blood Exposure SOP card + supply list	☐	☐	☐

SCOPE OF PRACTICE

	YES	NO	N/A
Do all services stay above the dermis — no injections, no medical needling, no deep peels, and nothing else that is a delegated medical act? Rule & penalty: 16 TAC §83.112(c); 22 TAC Chapter 169. Crossing into medical procedures without physician delegation exposes you to up to \$5,000 per violation, each day separate (TDLR) and Texas Medical Board action KIT INCLUDES: Scope-of-Practice Guide with a depth and technique decision matrix	☐	☐	☐
Do you have a written referral procedure for clients who ask for services beyond an esthetician's scope? Rule & penalty: 16 TAC §83.112(c) · up to \$5,000 per violation, each day separate (TDLR) KIT INCLUDES: Medical Referral SOP + client-facing explanation script	☐	☐	☐



	YES	NO	N/A
If a physician delegates any medical procedure performed on site, is that delegation documented in writing and reviewed annually? Rule & penalty: 22 TAC Chapter 169 · up to \$5,000 per violation, each day separate (TMB) KIT INCLUDES: Delegation Protocol templates + Annual Review Log	☐	☐	☐

OSHA & CHEMICAL SAFETY

	YES	NO	N/A
Do you have a written OSHA Exposure Control Plan, hepatitis B vaccination offers, and documented annual bloodborne pathogens training? Rule & penalty: up to \$16,550 per serious violation (OSHA) (29 CFR 1910.1030) KIT INCLUDES: Exposure Control Plan (salon edition) + training log + Hep B forms	☐	☐	☐
Is there a Safety Data Sheet for every chemical product, with all containers labeled — including anything decanted into a secondary container? Rule & penalty: up to \$16,550 per serious violation (OSHA) (29 CFR 1910.1200); 16 TAC §§83.102(n) and 83.114 — up to \$5,000 per violation, each day separate (TDLR) KIT INCLUDES: SDS Binder + labeling kit + storage checklist	☐	☐	☐
Are flammable and hazardous products stored per label directions, away from heat sources and client areas? Rule & penalty: up to \$16,550 per serious violation (OSHA); 16 TAC §83.114 — up to \$5,000 per violation, each day separate (TDLR) KIT INCLUDES: Chemical Storage Checklist	☐	☐	☐

YOUR SCORE: _____ YES / _____ NO / _____ N/A **“NO” COUNT:** 0–2 low · 3–5 medium · 6+ high

Every “NO” above is a documentation gap the Compliance Kit fills.

The Compliance Ghost Compliance Kit (\$997) includes ready-to-use compliance manuals, training guides with quizzes, completion certificates, the required forms and templates, and a step-by-step implementation guide — covering every item on this checklist, written for your business and delivered within 48 hours.

One-time purchase. Payment plans available: 3 × \$349/mo. Compliance Shield is optional and keeps these documents current as Texas rules change — \$89/month or \$890/year, cancel anytime.

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